

## 26NNCV03523 26NNCV03523

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-31

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[TENTATIVE] ORDER GRANTING MOTION BY DEFENDANT TO SET ASIDE/VACATE DEFAULT

### I. INTRODUCTION

Plaintiff Moises Diaz Perez ("Plaintiff") filed this action against Defendant Shiran Messica ("Defendant") arising from Defendant's alleged defamatory statements and conduct directed toward Plaintiff. Plaintiff alleges that Defendant falsely accused him of being a pedophile and a danger to children, interfered with his employment and economic relationships, and engaged in stalking and surveillance. The Complaint asserts causes of action for (1) defamation per se, (2) intentional interference with contractual relations, (3) intentional interference with prospective economic relations, (4) civil stalking under Civil Code section 1708.7, and (5) intentional infliction of emotional distress.

On July 7, 2026, the clerk entered Defendant's default. Defendant thereafter filed the instant motion to set aside the default, with renewed motion filed on August 7, 2026. Plaintiff opposes the motion.

### II. LEGAL STANDARD

Courts may set aside a default or default judgment due to lack of actual notice. Code of Civil Procedure § 473.5 states:

"(a) When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.

(b) A notice of motion to set aside a default or default judgment and for leave to defend the action shall designate as the time for making the motion a date prescribed by subdivision (b) of Section 1005, and it shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.

(c) Upon a finding by the court that the motion was made within the period permitted by subdivision (a) and that his or her lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect, it may set aside the default or default judgment on whatever terms as may be just and allow the party to defend the action."

Additionally, “[a] summons is the process by which a court acquires personal jurisdiction over a defendant in a civil action. The form of a summons is prescribed by law, and this form must be substantially observed. [Citation.] Service of a substantially defective summons does not confer jurisdiction over a party [citation] and will not support a default judgment. [Citation.]” (MJS Enterprises, Inc. v. Superior Court (1984) 153 Cal.App.3d 555, 557.)<sup>2</sup> “Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.” [Citation.]” (Sakaguchi v. Sakaguchi (2009) 173 Cal.App.4th 852, 858.) The trial court may set aside any void judgment or order at any time. (Code Civ. Proc., § 473(d).)

### III. DISCUSSION

Code of Civil Procedure section 473.5 allows a court to set aside a default or default judgment where service of summons “has not resulted in actual notice to a party in time to defend the action.” (Code Civ. Proc., § 473.5, subd. (a).) A motion under this section must be accompanied by a sworn declaration showing that the lack of notice was not caused by the party’s inexcusable neglect or avoidance of service. (§ 473.5, subd. (b); *Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1319.) In addition, the moving party must file a proposed responsive pleading. (§ 473.5, subd. (c).)

#### Procedural requirements

Here, Defendant moves to set aside the clerk’s entry of default entered on July 7, 2026, on the ground that she did not receive actual notice of the action in time to defend. Defendant submitted a sworn supplemental declaration stating that she moved from the address where substituted service was attempted effective April 1, 2026, and no longer resided or regularly returned there when service was made. (Messica Supp. Decl., ¶¶ 4-5.) Defendant further declares that she did not receive the summons and complaint through the substituted service and first learned that legal papers had been left at her former residence after a neighbor contacted her. (*Id.*, ¶ 6.)

Defendant has also submitted a proposed Answer concurrently with the motion. Thus, Defendant has satisfied the procedural requirements of section 473.5.

#### Merits

The Court finds that Defendant has sufficiently shown that she did not receive actual notice of the action in time to defend. Defendant declares that she moved from the Whitsett Avenue residence effective April 1, 2026, before substituted service was attempted there, and did not receive the summons and complaint through that service. (Messica Supp. Decl., ¶¶ 4-6.)

Although Defendant became aware of the action before entry of default, she promptly went to the Pasadena Courthouse seeking guidance and filed an ex parte application on July 6, 2026. Plaintiff obtained entry of default the following day. Thus, the record supports a finding that Defendant did not receive actual notice in time to defend and that her lack of notice was not caused by avoidance of service or inexcusable neglect.

Thus, Defendant has established grounds for relief under Code of Civil Procedure section 473.5.

### IV. CONCLUSION AND ORDER

The motion to set aside the clerk’s entry of default is GRANTED. Further, the Court declines to impose monetary sanction given the lack of actual notice and Defendant’s prompt efforts to participate in the action. Defendant’s answer is deemed filed as of the date of this order.

Defendant is to give notice.

Dated: August 31, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT